

TAB 5



Board of Education Report

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File #: Rep-003-23/24, Version: 1

Authorization to Execute a Memorandum of Understanding with the Los Angeles Department of Water and Power for the Hydration Station Initiative Program
August 22, 2023**Facilities Services Division****Action Proposed:**

Approve a Memorandum of Understanding (MOU) between the Los Angeles Unified School District (Los Angeles Unified or District) and the Los Angeles Department of Water and Power (LADWP) and authorize the Chief Facilities Executive and/or her designee(s) to execute all instruments reasonably related to this MOU for the *Hydration Station Initiative Program*.

Background:

The Los Angeles City Charter section 679 (c)(5) authorizes LADWP to appropriate, transfer, or expend money in the Water and Power Revenue Funds for the promotion of any of its products and services, including the promotion of conservation. In efforts to increase access to clean drinking water, improve confidence in tap water, inform consumers of benefits, reduce single-use plastic bottle waste, and promote healthy drinking water practices, LADWP established the *Hydration Station Initiative Program*. Under the terms of the proposed MOU, LADWP will commit up to a total of \$1 million in funding for hydration station installation and retrofit reimbursements at eligible Los Angeles Unified schools in the LADWP service area.

The term of the proposed MOU is five years and will expire in 2028. The MOU may also be extended or amended by mutual agreement between the District and LADWP.

The up-to \$1 million in funding to be provided under this MOU will reimburse Bond Program funding that was authorized to implement Phase III of the District's Drinking Water Quality Program (Program) which is currently underway to install water bottle filling stations and remediate drinking water fountains to bring lead levels to below five parts per billion (ppb) at all Early Education Centers, Special Education Centers, and Elementary Schools. To date, the Program has completed drinking fountain upgrades and installed hydration stations at over 140 schools, including all Early Education and Special Education Centers. A future Phase IV, if approved by the Board of Education (Board), will implement remediation work and installation of hydration stations at all Middle and High Schools.

Staff will identify the remaining Elementary Schools within LADWP's service area that have not yet received hydration stations and then obtain approval from LADWP prior to installing the stations to confirm reimbursement eligibility. Indoor hydration stations are qualified for reimbursements of up to \$5,000 per station for materials and labor and outdoor hydration stations are qualified for \$10,000 per station for materials and labor.

Expected Outcomes:

Staff anticipates the Board will approve execution of this MOU to permit the District and LADWP to perform all related necessary functions for its implementation.

Board Options and Consequences:

Approval of this action will enable staff to proceed with the necessary administrative and project activities related to LADWP's *Hydration Station Initiative*. If the proposed action is not approved, staff would not be able to seek up to \$1 million reimbursement from LADWP for the installation of hydration stations at schools.

Policy Implications:

The requested action does not change current District policies. Staff's proposal is consistent with the District's commitment to address unmet school facilities needs and provide students with a safe and healthy learning environment. The proposed action advances Los Angeles Unified's 2022-2026 Strategic Plan Pillar 4 Operational Effectiveness Modernizing Infrastructure by providing funding reimbursements for hydration station installation and retrofit at schools.

Budget Impact:

The proposed action does not require additional District funding. Per the MOU, LADWP agrees to fund a maximum of \$1 million for the installation of hydration stations, which will reimburse the Drinking Water Quality Program that is funded by Bond Program funds earmarked specifically for critical school upgrades and safety improvements to school building components.

Student Impact:

Approval of this action will help promote healthy drinking water practices and increase students' access to clean drinking water.

Equity Impact:

Reimbursements under this MOU is only applicable to schools within LADWP's service area.

Issues and Analysis:

In keeping with the terms of the MOU:

- LADWP commits up to \$1 million for hydration station installations at select school sites located within LADWP's service area as identified by Los Angeles Unified.
- Hydration stations are defined as devices that dispense drinking water and must include a bottle filling mechanism or allow for bottles to be filled.
- Indoor hydration stations are qualified for reimbursements of up to \$5,000 per station and outdoor hydration stations are qualified for \$10,000 per station.
- Los Angeles Unified will seek approval from LADWP prior to installing hydration stations to confirm reimbursement eligibility.
- Los Angeles Unified will procure, install, and maintain the hydration stations. Costs eligible for reimbursement include hydration stations and hardware costs, incidental material costs, and labor costs.
- To support LADWP's goal of promoting the use of clean tap water, Los Angeles Unified will apply mutually approved promotional signage at hydration stations.

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- LADWP will verify the installation of hydration stations and application of promotional signage.
- The MOU will expire in 2028 and may be extended or amended by mutual agreement between the District and LADWP.

Informatives:

None

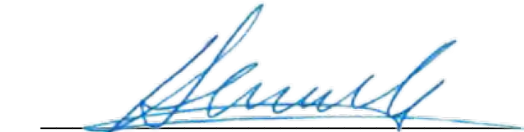
Attachments:

None

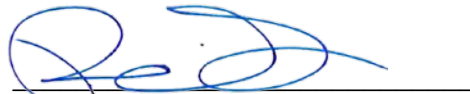
Submitted:

July 17, 2023

RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

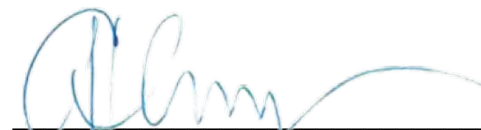
APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

REVIEWED BY:


DEVORA NAVERA REED
General Counsel☒ Approved as to form.

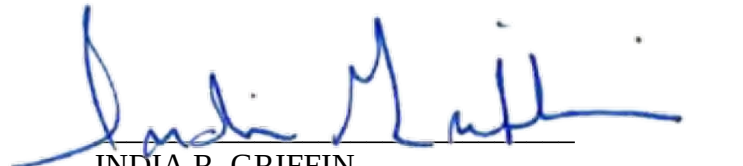
APPROVED BY:


KRISZTINA TOKES
Chief Facilities Executive
Facilities Services Division

REVIEWED BY:


NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance☒ Approved as to budget impact statement.

PRESENTED BY:


INDIA R. GRIFFIN
Director of Facilities Maintenance and Operations